IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI

COURT-VI

Item No. 615
CAA-112/PB/2021

IN THE MATTER OF:
M/s. Vadehra Builders Pvt. Ltd. and M/s. Vadehra Art Gallery Pvt. Ltd. **...APPLICANT**

Section
U/s 230-232

Order delivered on 01.06.2022
(Virtual Hearing)

Coram:
SHRI P.S.N. PRASAD, HON'BLE MEMBER (JUDICIAL)
SHRI RAHUL BHATNAGAR, HON'BLE MEMBER (TECHNICAL)

For the Petitioner/Applicant	:Mr. Hitendra Mehta along with Mr. Ahsan Ahmad, Advocates.
For the RD	:Ms. Shankari Mishra, Proxy Counsel.
For the OL	:Ms. Hemlata Rawat, Advocate.
For the Income Tax Department	:

ORDER

Heard the submissions made by the Counsel for the Petitioner/Applicant. Proxy Counsel for the RD has submitted that they have examined the response filed by the Petition in reply to the queries raised by them and they are satisfied with the reply furnished by the Petitioners, therefore RD has no further observation/comments to offer in this matter. OL's report is available on the e-portal of the Tribunal. No one is present on behalf of the Income Tax Department, therefore the Court Officer may send e-notice to the Income Tax Department for their appearance as well as for filing the reply in the matter. The Counsel for the Petitioner is also directed to furnish last three years' Income Tax Returns filed by the Petitioners accompanied by an

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(Meenu)

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affidavit-cum-undertaking stating that the tax dues will be paid by the demerging company as well as resulting company if any claimed by the Income Tax Department as per law. List this matter on **04.07.2022.**

—Sd—

(Rahul Bhatnagar)
Member (T)

—Sd—

(P.S.N Prasad)
Member (J)

(Meenu)